

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

5. MICKEY VINCENT DE MARTINI V. JESSICA RENEE ISABEL ELIJAH KANE THOMAS

26FL0003

On January 2, 2026, Petitioner filed a Request for Order (RFO) seeking to establish paternity, set aside the Voluntary Declaration of Paternity (VDOP), birth certificate amendment, and visitation orders. Concurrently therewith he filed a Request for Hearing and Application to Cancel (Set Aside) Voluntary Declaration of Parentage or Paternity. All required documents were personally served on February 23rd.

On March 6th, Respondent filed an RFO seeking to quash the request to set aside the VDOP and for sanctions. She filed a Memorandum of Points and Authorities in support of her RFO. Both documents were served on March 10th.

Respondent filed and served a Request for Judicial Notice on March 27th, though she is listed as the Petitioner on the pleading.

Petitioner filed his Responsive Declaration to Request for Order on May 29th. It was served on May 28th. He filed a supplemental declaration in support of his RFO on June 1st. Respondent objects to the supplemental declaration as untimely. The objection is sustained and the court has not read or considered the supplemental declaration.

Petitioner is requesting the following orders: (1) Establish his parentage of the child Shiloh by way of DNA testing; (2) Set aside the VDOP signed by Elijah Kane Thomas; (3) Add Petitioner to the minor's birth certificate; (4) Establish a parenting plan through a referral to Child Custody Recommending Counseling (CCRC); (5) Change the minor's name to "Shiloh Daniel De Martini;" and (6) Toll the statute of limitations due to Petitioner's incarceration.

Respondent opposes the requests and asks the court to quash the RFO seeking to set aside the VDOP as it was filed outside of the two year statute of limitations and there is no basis for the court to exercise its discretion to toll the statute of limitations. She asks that the court take judicial notice of documents attached as exhibits 1 – 7 to the Request for Judicial Notice each of which is found as part of the El Dorado County Superior Court Case # 21CR0364. Finally, she requests sanctions pursuant to Family Code § 271.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including

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“[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.”

Section 452 provides that the court “may” take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court “shall” take judicial notice of any matter “specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter.” Cal. Evid. Code § 453.

Here, Respondent has given all parties sufficient notice of her requests and provided copies of the documents she is referencing. As such, the court finds that she has satisfied the requirements of Evidence Code § 453 and therefore the request for judicial notice is granted.

Pursuant to Family Code § 7577, any action to set aside a VDOP “...shall be filed not later than two years after the effective date of the declaration.” Fam. Code § 7577(d). Here, the VDOP in question was signed on November 25, 2022. The request to set aside the VDOP was not filed until more than three years later on January 2, 2026. Therefore, the request to set aside the VDOP is denied as untimely.

Because the request to set aside the VDOP is denied, so too are the remaining requests in Petitioner’s RFO.

The request for Section 271 sanctions is denied as the court does not find that Petitioner’s requests frustrated the policy of the law to encourage cooperation and reduce the cost of litigation.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: RESPONDENT’S OBJECTION TO THE JUNE 1, 2026 SUPPLEMENTAL DECLARATION IS SUSTAINED. THE SUPPLEMENTAL DECLARATION HAS NOT BEEN READ OR CONSIDERED.

RESPONDENT’S REQUEST FOR JUDICIAL NOTICE OF EXHIBITS 1-7 IS GRANTED.

THE REQUEST TO SET ASIDE THE VDOP IS DENIED AS UNTIMELY.

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BECAUSE THE REQUEST TO SET ASIDE THE VDOP IS DENIED SO TOO ARE THE REMAINING REQUESTS IN PETITIONER'S RFO.

THE REQUEST FOR SECTION 271 SANCTIONS IS DENIED AS THE COURT DOES NOT FIND THAT PETITIONER'S REQUESTS FRUSTRATED THE POLICY OF THE LAW TO ENCOURAGE COOPERATION AND REDUCE THE COST OF LITIGATION.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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6. TERRY HEISLER V. GINGER HEISLER

23FL0387

On March 13, 2026, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC). It was personally served on Petitioner on March 28, 2026.

The parties are ordered to appear for the arraignment.

TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT.